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Executive Order.

By virtue of the powers in me vested as President of the United States of America and pursuant to Article 38 of Chapter II of an act of Congress entitled "An act to amend an act entitled 'An act for making further and more effectual provision for the national defense, and for other purposes,' approved June 3, 1916, and to establish military justice," approved June 4, 1920 (41 Stat. 759), I hereby modify, as set out in the following changes, the rules of procedure, including modes of proof in cases before courts-martial and courts of inquiry in the Army of the United States contained in the Manual for Courts-Martial in force and effect on and after February 4, 1921, and prescribe them as so modified, and direct them to be published for the government of all concerned.

CALVIN COOLIDGE

THE WHITE HOUSE,
Dec. 9, 1924.

Army - Procedure.

Paragraphs 69, 113, 237a, 284 and 336, Manual for Courts-Martial, 1921, are changed as follows:

69. Change the last subparagraph to read as follows:

The right of challenge for cause may be exercised by each accused but the right of peremptory challenge may be exercised but once on behalf of the defense though there may be more than one accused.

113. Change the introductory paragraph to read as follows:

A reporter shall be paid at not exceeding the following rates of compensation by the Finance Department on vouchers certified to be correct by the trial judge advocate or recorder:.

237a. Change the paragraph to read as follows:

237a. Report of Investigating Officer—Summary of Evidence of Preliminary Investigation.—Neither the report of an investigating officer nor the accompanying summary of the testimony of a witness on a preliminary investigation of a charge is competent evidence of the facts therein stated. But the properly identified (See par. 236a (4)) summary of the testimony of a witness signed by him may be used to impeach him (See par. 260); and such summary of accused's testimony if signed by him may be introduced in evidence to prove his admission or, if voluntary, his confession.

—Note 1 omit.

—Note 2 omit.

284. Change the note at the top of page 227 to read as follows:

Note.—Where, to a charge of desertion, accused files a plea denying desertion but admitting absence without leave, and pleading, by exception and substitution, not guilty of violation of the fifty-eighth article of war, but guilty of violation of the sixty-first article of war, such plea of guilty alone is not in itself sufficient basis for a conviction of desertion, no matter how long the absence without leave thereby admitted. But this rule does not apply where (a) there is proof, independent of such plea, of the prolonged unauthorized absence of an accused, as, for instance, a morning report or an extract copy thereof; or (b), where, although there is no proof, other than such plea, of unauthorized absence for the period thereby admitted there is other proof from which reasonably it may be inferred that the accused intended to desert the service. In case of such a plea the court should receive evidence of the facts and circumstances and determine from the evidence before it whether or not the accused is in fact guilty of desertion or only of some lesser included offense.

284. Change subparagraph (b), added by C. M. C. M. No. 1, July 29, 1921, to read as follows:

(b) *Authentication of extract copies of morning reports intended to be introduced in evidence before courts-martial.*—(1) Extract copies of morning reports intended to be introduced in evidence before courts-martial, except in the cases of organizations that have ceased to exist, in which cases the morning reports have been transmitted to the War Department and form a part of the official records thereof (for authentication of such records see par. 238, supra), will be authenticated in substantially the following form by the officer having official custody of the original morning report:

EXTRACT COPY OF MORNING REPORT OF

(Company, troop, battery or detachment) (Regiment or other organization)

(Complete designation of command) (Station) (Date)

I, ---, certify that I am the commanding officer
(Name, rank and branch)

of ---
(Complete designation of command)
and official custodian of the morning reports of said command, and that the foregoing is a true and complete copy (including any signature or initials appearing thereon) of that part of the morning report of said command submitted at ---, for the dates indicated in said copy which
(Station)

relates to ---
(Full name, army serial number, grade and organization of person referred to in extract copy)

(Signature)

(Rank and branch)

Headquarters---
(Complete designation of command) (Station) (Date)

I, ---, commanding officer of the command
(Name, rank and branch)

last above named, certify that ---
(Complete designation of command named in first certificate)

is a part of my command; that---
(Rank, name and branch)

is the commanding officer of---
(Complete designation of command named in first certificate)
and official custodian of the morning reports thereof; that the signature attached to the foregoing certificate is the genuine signature of said officer; and that to his certification full faith and credit are and ought to be given.

(Signature)

(Rank and branch)

Note.—Only in cases wherein morning reports of the command of such authenticating officer are required by Army Regulations to be submitted to the next higher administrative unit, or of a post, camp or other station, will the second certificate by the commanding officer of such higher administrative unit, post, camp or station be required.

336. Add to the paragraph the following:

Admonition and reprimand imposed under the 104th Article of War in the case of an officer will be in writing, and official notification of the imposition of other punishments under the article will be given the officer in writing. Such written admonition, reprimand, or notification will constitute the record of the punishment.

[No. 4111.]

GOVERNMENT PRINTING OFFICE